

26STCV08719 26STCV08719

County: los-angeles

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Case Number: 26STCV08719 Hearing Date: September 23, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

GEORGE AJRAB,

Plaintiff,

vs.

FARMERS INSURANCE

Exchange, dba FARMERS INSURANCE,

Defendant.

Case No.:

26STCV08719

Hearing Date:

September 23, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE] ORDER RE:

DEFENDANT FARMERS INSURANCE
EXCHANGE's DEMURRER TO PLAINTIFF'S COMPLAINT

Background

On March 18, 2026,

Plaintiff George Ajrab ("Plaintiff") filed this action against Defendant Farmers Insurance Exchange, dba Farmers Insurance, alleging one cause of action for breach of contract.

Defendant Farmers

Insurance Exchange ("Farmers") now demurs to Plaintiff's complaint. Plaintiff did not oppose. Farmers filed a "Reply Brief in response to Plaintiff George Ajrab's ('Plaintiff') failure to submit Opposition to Defendant's Demurrer to Plaintiff's Complaint for Breach of Contract." (Reply, 1:21-22.)

Legal

Standard

A demurrer for

sufficiency tests whether the complaint states a cause of action. ((Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. ((Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." ((SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." ((Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

Under Code of Civil Procedure section 430.10, subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. ((Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th

962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. ((Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Discussion

A. Allegations of the Complaint

Plaintiff's

Complaint alleges that on or about 2024, 2025, and 2026, Plaintiff and Farmers entered into written agreements with the essential terms as follows: "Plaintiff Ajrab entered into a contract with defendant to pay damages to plaintiff's property for landlord protection regarding covering 8 apartment units he owned in San Bernardino, CA. Defendant Farmers Insurance agreed to pay plaintiff for damages to his property covered by the policy of insurance (Policy No.: 5004958350). Defendant breached the contract by failing to pay plaintiff's property damages." (Compl., p. 3, BC-1, subd. a.) Then, on or about 2024, 2025, and 2026, Farmers breached the agreement by "Defendants failed to pay damages for loss of rental income, deductibles, depreciation, copper wires, and air conditioning." (Compl., p. 3, BC-2.) Plaintiff suffered damages due to this breach as follows: "Air conditioning - \$13,876; Deductible - \$10k; Depreciation - \$10k; Rental Income - \$48k; Copper Wire - \$1,500." (Compl., p. 3, BC-4.)

B.

Breach of Contract

Farmers

demurs to Plaintiff's Complaint because "Plaintiff not only failed to attach the Policy to the Complaint, but he also failed to plead its pertinent terms so as to make out a claim for breach of contract. California law requires a plaintiff suing on a written policy to either attach the policy or plead the material terms. Plaintiff did neither. As Plaintiff declined to attach a copy of the Policy to the Complaint, the Court is warranted in sustaining the Demurrer." (Dem., 4:15-19.)

To

state a cause of action for breach of contract, a plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." ((Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) Under Code of Civil Procedure section 430.10, subdivision (g), a demurrer is proper when "an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

Farmers

contends that Plaintiff's failure to attach the policy requires dismissal of the Complaint for breach of contract. Farmers' counsel's declaration in support explains that "Defendant Farmers Insurance Exchange did not issue any policy to Plaintiff with the policy number identified in the Complaint." (Cordelli Decl., ¶ 2.) Farmers asserts that "Defendant attempted to avoid motion practice on this issue by requesting that Plaintiff voluntarily attach a complete copy of the Policy to the Complaint via amendment. Such an action would allow Plaintiff to amend the pleading to state a viable claim against the actual issuing insurer, who could be substituted into the case as a 'Doe' Defendant. However, Plaintiff declined to take this simple step despite Defendant's counsel's multiple efforts to resolve the issues in question without the need to file a Demurrer. Accordingly, the Court should now sustain the Demurrer to the Plaintiff's Complaint and require him, at a minimum, to attach the Policy to the Complaint. If, as Defendant contends, the Policy in question was not issued by Farmers, then it will be entitled to a dismissal with prejudice, and Plaintiff will be free to pursue the insurer actually issuing the Policy identified in the Complaint." (Dem., 8:6-14.)

As

the court in *Twaite v. Allstate Ins. Co.* (1989) 216 Cal.App.3d 239, 252, noted, "[t]o state a cause of action for breach of contract, it is absolutely essential to plead the terms of the contract either in haec verba or according to legal effect." Although Plaintiff's Complaint alleges the general elements of a breach of contract cause of action, Plaintiff fails to allege the terms of the policy, what specific duties Farmers owed Plaintiff, or attach the policy for the purported breach. Without these, Plaintiff's breach of contract cause of action is insufficient and warrants sustaining Farmers' demurrer. Additionally, Farmers contends that Plaintiff does not have a policy with them, which requires dismissal of the Complaint. However, the Court is limited to the four corners

of the Complaint and judicially noticed matters, so sustaining the demurrer without leave to amend on the basis of Farmers as an improper party is insufficiently supported. The Court sustains the demurrer with leave to amend because, from the allegations of the Complaint, Plaintiff's defect is curable.

Conclusion

In light of the foregoing, Farmers' demurrer to the first cause of action is SUSTAINED, with leave to amend. Plaintiff is ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders Farmers to file and serve a proposed judgment of dismissal within 30 days of the date of this Order.

Farmers is ordered to give notice of this Order.

DATED: September
23, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court